

Stereo HCJDA 38
JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.18549 of 2026

Muhammad Ibrar

Vs.

Sakhi Muhammad, etc.

Petitioner by:- Rao Aurangzeb Rashid, Advocate

Respondent No.1 by: Rai Imran Khan, Advocate.

Date of hearing: - **11.06.2026**

JUDGMENT

RAHEEL KAMRAN, J:- Through this petition, the petitioner has assailed the judgment dated 18.02.2026 passed by the Additional District Judge, Depalpur whereby Civil Revision filed by respondent No.1 was allowed and the order dated 17.12.2025 passed by the Civil Judge Depalpur, allowing the petitioner's application for setting aside *ex parte* proceedings, was set aside.

2. Briefly stated, respondent No.1 instituted a suit for specific performance against the petitioner on the basis of an agreement to sell dated 13.06.2019. The petitioner entered appearance and filed written statement controverting the claim of respondent No.1. However, on 19.02.2025, owing to his non-appearance, he was proceeded against *ex parte*. Thereafter, the petitioner moved an application under rule 7 of Order IX Civil Procedure Code, 1908 (**CPC**) seeking setting aside of the *ex parte* proceedings. The Trial Court, after hearing the parties, accepted the said application vide order dated 17.12.2025 subject to payment of costs amounting to Rs.2,500/-. Feeling aggrieved, respondent No.1 preferred a civil revision which was accepted vide judgment dated 18.02.2026 resulting in restoration of *ex parte* proceedings against the petitioner. Hence, this constitutional petition.

3. Learned counsel for the petitioner contends that the findings recorded by the Courts below are at variance with each other. He maintains that the petitioner's application for setting aside the order dated 19.02.2025, whereby *ex parte* proceedings were initiated against him, was rightly accepted by the Trial Court through order dated 17.12.2025 in exercise of its lawful discretion. He adds that respondent No.1 challenged the said order through a revision petition which was erroneously accepted by the Revisional Court vide impugned judgment dated 18.02.2026 on the premise that the limitation for filing an application for setting aside *ex parte* proceedings was thirty days and that the petitioner's application had been filed after a delay of approximately seven months. Learned counsel further contends that no specific provision of the Limitation Act, 1908 ("the **Act**") prescribes a limitation period of thirty days for such an application and, therefore, the residuary Article 181 of the Limitation Act providing a limitation period of three years would govern the matter. He emphasizes that the Trial Court rightly exercised its discretion in favour of adjudication on merits and the impugned judgment dated 18.02.2026 is liable to be set aside.

4. Conversely, learned counsel for respondent No.1 supports the impugned judgment and submits that the petitioner remained absent for a considerable period without furnishing any plausible explanation either for his absence on 19.02.2025 or for the delay in filing the application. It is argued that the Revisional Court rightly interfered with the order of the Trial Court as the petitioner had failed to establish sufficient cause for recalling the *ex parte* proceedings.

5. Heard. Available record perused.

6. The pivotal question requiring determination is whether the Revisional Court was justified in interfering with the discretionary order of the Trial Court whereby the petitioner was permitted to rejoin the proceedings after having been proceeded against *ex parte*.

7. Before advertizing to the facts of the case, it would be advantageous to reproduce rule 7 of Order IX of the C.P.C., which reads as under:-

“Procedure where defendant appears on day of adjourned hearing and assigns good cause for previous non-appearance.--Where the Court has adjourned the hearing of the suit ex parte, and the defendant, at or before such hearing, appears and assigns good cause for his previous non-appearance, he may, upon such terms as the Court directs as to costs or otherwise, be heard in answer to the suit as if he had appeared on the day fixed for his appearance.”

A plain reading of rule 7 of Order IX C.P.C. demonstrates that where a defendant, against whom *ex parte* proceedings have been initiated, subsequently appears and assigns good cause for his previous non-appearance, the Court is vested with discretion to permit him to participate in the proceedings on such terms as to costs or otherwise as may be deemed appropriate. The provision is intended to prevent failure of justice and to ensure that disputes are adjudicated on merits. Significantly, the rule itself does not prescribe any period of limitation for moving an application seeking recall of *ex parte* proceedings.

8. Examined in the light of the above statutory framework, the facts of the present case assume significance. The petitioner had entered appearance in the suit and filed written statement contesting the claim of respondent No.1. Subsequently, on 19.02.2025, he was proceeded against *ex parte* owing to his non-appearance. It is an admitted position that no *ex parte* decree had been passed and the suit was still pending adjudication when the petitioner moved an application seeking recall of the *ex parte* proceedings. The Trial Court, after hearing both sides, allowed the application subject to costs and permitted the petitioner to participate in the proceedings. Therefore, the controversy in hand relates to restoration of a party's right to participate in pending proceedings and not to the setting aside of an *ex parte* decree.

9. The legal position governing the controversy is no longer *res integra*. In the case of Police Department v. Javid Israr (1992 SCMR 1009), the Supreme Court of Pakistan held that a party proceeded against

ex parte does not become non-existent for the remainder of the proceedings and may be permitted to join the proceedings at a subsequent stage.

*”... Reading Rules 6 and 7 of Order IX in conjunction, it is amply clear that if the defendant in spite of service does not appear on the day fixed in the summons, the Court may proceed with the suit notwithstanding the absence of defendant and if he, later on, is able to assign good cause for his previous non appearance, he can be relegated to the stage at which he was proceeded *ex parte*, which nowhere lays down that the defendant shall be debarred to take part in the subsequent proceedings if either he is not able to show good cause for the revival of the earlier proceedings or he does not feel a necessity to undo whatever is already done in the case, and simply stands in need of contesting the suit from the later stage. ...*

*...In the absence of any clear provisions in the Code of Civil Procedure prohibiting the appearance and taking part in the proceedings by the defendant proceeded *ex pane*, there can be no legal bar to allow him to defend his rights. It is the right of every defendant and also the principle of natural justice, to be given a chance of hearing before any order is passed against his interest. ...*

The above principle has recently been reiterated by this Court in the case titled as *Rana Karamat v. Farhan Haider* (2024 CLC 563) wherein it was held that a defendant proceeded against *ex parte* cannot be treated as a dead person for future proceedings and remains entitled to participate in the case from the stage at which he appears. These authoritative pronouncements unmistakably demonstrate that *ex parte* proceedings do not extinguish the status of a party to the litigation nor permanently deprive such party of the opportunity to defend his rights.

10. Equally, the assumption of the Revisional Court that such an application was required to be filed within thirty days finds no support from the statutory scheme. The question now stands authoritatively settled by the Supreme Court of Pakistan in the case titled as *Muhammad Yousuf Bhindi and others v. Messrs A.G.E. & Sons (Pvt.) Ltd. and others* (PLD 2024 SC 864) wherein it was held that no specific Article of the Act governs an application under rule 7 of Order IX C.P.C., consequently, such an application falls within the ambit of Article 181 of the Act and may be filed within three years from the date the right to apply accrues. The august Supreme Court further reaffirmed that a

defendant proceeded against *ex parte* does not cease to be a party to the proceedings and may, before culmination of the suit, seek restoration to the position occupied prior to the *ex parte* order by assigning good cause for previous non-appearance. It was further emphasized that procedural provisions are intended to advance the cause of justice and that disputes should ordinarily be resolved on merits rather than on technicalities. The relevant extract is reproduced below:-

“11. ... However, for the defendants, Article 164 of the Limitation Act is applicable, in which the defendant may apply within 30 days from the date of the decree or where the summons was not duly served, when the applicant has knowledge of the decree, for setting aside a decree passed ex parte; but there is no specific Article or limitation is provided in the Limitation Act meant for making any application for setting aside an ex parte order under Order IX, Rule 7, C.P.C., therefore, for all intents and purposes, Article 181 of the Limitation Act would apply wherein to meet such eventualities, three years' limitation period is provided when the right to apply accrues. It is also well settled that even if the proceedings are ordered ex parte the defendant may join proceedings at any subsequent stage and file an appropriate application for setting aside ex-parte order with good cause. A person nevertheless declared ex parte, continues as party to the proceedings and even can cross-examine the witnesses. If good cause is shown to the satisfaction of the Court to justify his previous absenteeism, the ex parte proceedings may be set aside by the Court and the defendant may then be restored to the position he held on the date when he was proceeded against ex parte. This rule invests the court with the wide-ranging potential discretion to allow the application if the defendant who was declared ex parte assigns good cause for previous absence.”

[Emphasis supplied]

The principle laid down in the aforesaid judgments squarely applies to the facts of the present case where the petitioner had already entered appearance, filed written statement and sought to rejoin the proceedings before any *ex parte* decree had been passed.

11. Apart from the above, the Revisional Court appears to have overlooked the distinction between an order proceeding *ex parte* and an *ex parte* decree. Since the proceedings in the present case were still pending and no *ex parte* decree had been passed, the emphasis ought to have remained on securing adjudication of the controversy on merits. The Revisional Court, therefore, misdirected itself in law by interfering with

the discretionary order of the Trial Court primarily on the basis of delay in filing the application.

12. The order dated 17.12.2025 passed by the Trial Court reflects a conscious and judicious exercise of discretion. The petitioner was burdened with costs and was required to join the proceedings from the stage at which they stood. The order neither occasioned any failure of justice nor caused irreparable prejudice to respondent No.1. Rather, it ensured that the dispute between the parties would be resolved after affording both sides a fair opportunity of hearing.

13. Revisional jurisdiction is supervisory in nature and is intended to correct jurisdictional defects, material irregularities, patent illegalities, perversity, or conclusions contrary to law. In the case of Atiq-ur-Rehman through (Real Father) and another v. Muhammad Amin (PLD 2006 SC 309), the Supreme Court of Pakistan held that interference in revisional jurisdiction is permissible only where the subordinate Court has committed a jurisdictional error, misread or failed to read material evidence, or where the conclusion reached is perverse or contrary to law; a mere possibility of another view on the same material does not warrant interference. In the present case, the Revisional Court has neither identified any jurisdictional defect nor pointed out any perversity or material illegality in the order dated 17.12.2025 passed by the Trial Court. Rather, the interference has primarily been founded upon an erroneous understanding of the law governing rule 7 of Order IX of C.P.C. and limitation, which cannot be sustained.

14. The controversy between the parties pertains to rights in immovable property and the petitioner has already raised a substantive defence in his written statement. Fair adjudication of such controversy requires that both parties be afforded a reasonable opportunity to lead and challenge evidence. Any inconvenience caused to respondent No.1 can adequately be compensated through costs, whereas denial of opportunity to the petitioner may result in serious prejudice affecting valuable proprietary rights.

15. For what has been discussed above, this petition is **allowed**. The judgment dated 18.02.2026 passed by the Additional District Judge, Depalpur is set aside and the order dated 17.12.2025 passed by the Civil Judge Depalpur allowing the petitioner's application for setting aside *ex parte* proceedings, is restored. The petitioner shall deposit the costs already imposed by the Trial Court, if not already deposited, on or before the next date fixed before the Trial Court. The Trial Court shall thereafter proceed with the suit strictly in accordance with law and shall endeavor to decide the same expeditiously.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting

JUDGE

Waqas*